

EARLY MODERN WORKSHOP: Jewish History Resources

Volume 16: Senses and Perceptions

Fordham University, New York, August 19-20, 2019

“The Torch of the Inquisition”: Representations of burning and drowning in sixteenth-century Cretan rabbinic texts

Rebecca Wartell, University of Colorado, Boulder

Source: Artom, Elias and Umberto Cassuto, eds. *Takkanot Kandyah u'Zikhronotehah, [Statuta iudaeorum Candiae]*. Jerusalem: Mekize Nirdamim, 1943. <http://hebrewbooks.org/37010>.

The Italian Inquisitions of the mid-sixteenth century sparked increased persecution of Jews throughout Italy, reaching as far as the Venetian colony of Crete. Anti-Jewish measures on *terraferma* included the creation of new Jewish ghettos, restricted economic activity and public burnings of Hebrew scripture. Additionally, the expulsion of Jews from the Papal State caused the exiles to seek protection from the Inquisition, hence waves of migrants began to arrive in Candia, the heart of Crete's established Romaniote Jewish community. Many of the refugees were of Sephardim of *converso* background, described in the texts as having “drowned in the waters of the Inquisition,” seeking the chance to return to Judaism.

Takanot Kandiya, the collection of statutes from the Jewish community of Candia compiled by Rabbi Elijah Capsali, contains several letters by rabbinic leadership that address the crisis of the *converso* refugees in Candia around the year 1568. Using a lexicon that repeatedly refers to the sense of burning, the letters allude to the burnings of Talmud and also the public executions of *conversos* accused of Judaizing, who were burnt at the stake. Rabbi Elijah Galimidi describes the inquisitors as “the authorities of the nation that burns them.” What is most striking, though, are the consequences threatened by the rabbis to the local community for not helping the refugees: they will be “hurt by the embers and burnt from the fire of exile,” according to preeminent Safed rabbis David ben Abi Zimra, Yosef Karo, Yisrael Bar Meir, and Moshe bar Yosef Mitrani. A critical reading of these letters allows us to explore the sensations of burning and drowning: the painful fire of condemnation is threatened by authorities of the Church as well as the rabbis, showing the seriousness of the *converso* issue. At the same time, the deadly waters of forced conversion through Catholic baptism can be reversed via the living waters of the mikvah. The Jews of Candia are given a key role in the enabling the *conversos* to return to Judaism, thereby restoring the spiritual purity of the Jewish people.

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No. 113 Restrictions on the reckless and the prohibition on calling brethren an apostate. (pp. 147-8)

Esteemed Gentlemen, Dear Children of Zion, Intelligent and Knowledgeable People, Leaders of our Holy Community that came to Candia [Crete] to preserve, strengthen and sustain it, and in your complete wisdom, the entire community has great respect for our rabbis' graciousness in essence, spirit, and soul. May peace reign forever.

[skip to line 17]

We also want to instruct you because we hear about the anusim who drowned in the waters of the Inquisition [succumbed to forced conversion] and have come to your community to find shelter under the wings of the Divine Presence [return to Judaism]. When we quarrel with them and abuse them and call them apostates, (*meshumadim*) this is wicked and illegal, and it slams the door in the faces of those seeking repentance (*baalei teshuva*). The person who does this causes great suffering and torture. Many sinners have done this, and Mordechai (?) has already written an intervening chapter that Rabbi Gershom implements a sentence of banishment for this. From today and here forward, let it be a warning to every person that if you fail in this, you will get hurt by the embers and from the fire of exile imposed by Rabbi Gershom. Even if you just verbally abuse him [a convert] or his father, even if you yell at him about other matters, and not about this matter. And, God forbid, it should come to pass that anyone big or small does this, you will quickly be sent into exile for one day until you confess. And to he who fails again on this issue, the punishment is to be rejected and placed into exile, as it is written in the Torah, to separate yourselves from him judgement is given. Big or small, do not tolerate this behavior and also investigate if there are any other slight sins as well. Set aside and safeguard the Torah. As reward, take pity on them (the *conversos*) and grant them to see a house and land. And God will bless you and

grant you fortune in whatever you do. Your souls will be greatly cleansed and most beloved wishes guaranteed to come true.

Written and Signed on the 15th of Tammuz 5328 (21 July 1568)

In order and atonement on the Children of Israel, here in Safed, build and prepare speedily [for the world to come].

David ben Abi Zimra

Yosef Karo

Yisrael Bar Meir (of blessed memory)

Moshe bar Yosef (of blessed memory) Mitrani

No. 114 Excommunication for anyone who calls a repentant an apostate (p. 148)

Do not speak and fight childishly as you are fighting presently about our current exile. The hand of other nations attacks us, and falsely accuses us about our faith. The people among us that were forcibly converted are returning to their faith and among those *anusim* some are returning to their faith and after a period of time saving [themselves] by returning to their faith and returning in complete repentance. Our rabbis of blessed memory said that in this situation with repentants, when bad people sin against God and subdue our people and quarrel amongst ourselves, and remind [the anusim] of all that has happened to them and even threaten to turn them into the hand of the authorities of the nation that burns them – this is [*hillul hashem*] a public desecration of God by everyone.

Furthermore this causes a problem for all of Israel, the nation of God. You will all be excommunicated – the entire blessed community – an eternal excommunication – unbearable and terrible. You will be declared excommunicated and banished, every man and every woman, small and big, that moves his lips or does something to provoke/cause a reaction [lets come out his mouth to talk or to remind them] to reprimand a convert. [Line 10] כ"ש לאיים לאמר אזיל זאכיל קורצא לאומות - will be banished and exiled from the heavens and from creation, in this world and in the world to come, cursed by day and cursed by night, God will not be willing to forgive him, and God will separate evil from all the tribes of Israel and blot out his name from heaven. And if possibly a person is found in the midst of the Jewish community [Israel] who is cruel and wicked, who lets come arrogant words come out of his mouth, even during a quarrel or argument, and argues an idea or a secret and so forth, it is still possible to give him all of the curses written in the Torah and to blot his name from heaven. This will ensure that his soul will rest secure and serene and then everything will be refreshed and tranquil.

The bereaved and lonesome Elijah Galimidi

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קיג גדר בעד המופקרות ושלל לומר לחברו משומד

הגבירים השועים בני ציון היקרים אנשי תבוננו ומדע מנהיגי ק"ק שבאי קנדיאה יצ"ו ובראשם החכם השלם הכולל הרב כמהר"ר יאודה חן נר"ו, לשלום אין קץ.

עוד זאת נדרש לכם, על כי שמענו שאנשים שטבעו במי השמד לחסות תחת כנפי השכינה וכשמתקוטטים עם אחרים מחרפים אותם וקורין אותם משומדים וזה עון פלילי. שנועלים דלת לפני בעלי תשובה, והעושה זאת גדול עונו מנשא. וחטא הרבים תלוי בו, וכבר כתב המרדכי פרק החובל שרבינו גרשום גזר נידוי על כך. לכן מהיום והלאה יזהר כל אדם מלהכשל בדבר זה, ומלהכוות בגחלתו של ר"ג מאור הגולה. ואפילו יחרפהו הלה לו לאבותיו, יחרפהו גם כן הוא בדברים אחרים. אך לא בדבר זה, ואם חס ושלום יעבור שום אדם על זה, גדול או קטון, יחוש לעצמו וישב / בנידוי יום אחד ויתודה, ויקבל עליו שלא להכשל עוד בדבר זה. ושב ורפא לו. ואם יסרב מלהיות בנידוי, כ"ת תבדלו ממנו עד שיקבל עליו את הדין. כקטון כגדול, ואל נא תשא פני איש, גם תחקרו אם יש קצת עבירה אחרת ביד קצט. תפרישום ותעשו סייג לתורה, ובשכר זאת ירחם ה' עליכם. ותזכו לראות בבנין הארץ. וישלח ה' כרכה והצלחה בכל מעשה ידיכם ובאסמכם, כיש את טוהר גדולת נפשכם וכיש את חפץ נאמני אהבתכם, הכותבים והחותמים בט"ו לתמוז השכ"ח. בסדר ויכפר על בני ישראל, פה צפת תוב"ב.

יוסף קארו

דוד נ' אבי זמרא

משה בר' יוסף זלה"ה מטראני

ישראל בר' מאיר זלה"ה

קיד [חרם למי שאומר משומד לבעל תשובה]

על דברת היות ילדי הזמן ומקרי רבו כמו רבו בגלותנו זה, ויד האומות תקיפו עלינו, ומעלילים אותנו על דתנו, ואנוסים אנשים ממנו לחזור לדתם, ומתוך אנוסים חוזרים לדתם ואחר במוצאם ריוח והצלחה חוזרים לדתם ושבים בתשובה שלמה. ורז"ל אמרו כי במקום שבעלי תשובה וכו', ובזמן מה אנשים רעים וחטאים לה' מאד מכריעי עמנו מתקוטטים עמם, ומזכירים להם את העבור עליהם, ולא עוד אלא שמאיימים עליהם / להלשינם ולמוסרם ביד האומות לשורפם, וזהו חלול ה' ברבים ועל זה נתעוררו ישראל עם ה'. והחרימו בכל הקהלות הקדושות חרם גמור איום ונורא וגזרו חרם נידוי ושמתאעל כל איש ואשה קטן וגדול. אשר יניע שפתיו או יציא מפיו דבר נבלה להזכיר עונם כ"ש לאיים לומר אזיל

ואכיל קורצא לאומות יהיה מוחרם ומנודה לשמים ולבריות. בעולם הזה ובעולם הבא ארור הוא ביום ארור הוא בלילה, לא יאבה ה' סלוח לו, והבדילו ה' לרעה מכל שבטי ישראל, ומחה ה' את שמו מתחת השמים. ואם באולי ימצא תוך ישראל איש אכזר ובליעל להוציא מפיו מלין והגא מפין יצא, אפילו מתוך קטטה ומריבה, אלא ריבן ריב את רעך וסוד וכו', יחולו עליו כל האלות הכתובות בתורה, ומחה י"י את שמו מתחת השמים, ושומר נפשו ישכון בטה ושאנן, והיה עליהו רענן, וכל אשר לו שלום. שכול וגלמוד אליה גלימדי./